



European
Conservatives
and Reformists
Group

Time to take a new direction

Commission Work Programme: Unleashing Europe's potential



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Europe is in a global race in which only competitive economies will be able to create jobs and raise the living standards of their citizens. The European Union is facing a profound competitiveness crisis in an increasingly challenging global economy whilst most other regions of the world are growing more quickly, with increasing levels of productivity and

innovation. The euro area public debt crisis has greatly damaged the European economy and has caused considerable hardship for millions.

This is why the EU needs a programme that prioritises economic growth and competitiveness.



Work must continue on resolving the immediate euro area crisis by re-establishing sound public finances, creating a robust banking system and stimulating sustainable economic growth. Well-targeted public investment is necessary, for example to improve education standards and develop infrastructure, but long-term growth is not achieved by increasing public expenditure. To do so would necessitate increasing the tax burden on already hard-pressed individuals and businesses – or the borrowing of even more money to be repaid by future generations.

The ECR supports a growth strategy whose objective is to ensure that the right policy framework is in place to allow business and entrepreneurs to thrive by creating employment, generating wealth and raising living standards. We note that the **Europe 2020** growth strategy has set out a path for the future, but we regret the fact that the political will has been lacking to give it sufficient momentum to ensure its full implementation.

European public spending cannot be exempt from the considerable efforts of the Member States to bring their public spending under control. The EU budget must not lay an extra fiscal burden on taxpayers. Instead it should be directed towards helping Member States tackle, collectively and in a concerted fashion, the present structural challenges, in particular loss of competitiveness

and consequent rising unemployment. We continue to insist that the principle of European added value should be the cornerstone of all expenditure and that it must also be guided by the principles of efficiency, effectiveness and value for money, while respecting the **principle of subsidiarity** as defined by Article 5 of the Treaty on European Union (TEU) and anchored in Protocol 1 on the role of national parliaments in the European Union.

Europe 2020 Growth Strategy

is the EU's growth strategy for the coming decade. The Strategy aims in to ensure a sustainable and inclusive economy that with the help of Member States will lead to high level of employment, productivity and social cohesion.

The principle of subsidiarity

determines when the EU is competent to legislate, and contributes to decisions being taken as closely as possible to the citizen.

PRIORITY

Single European Transport Area

A roadmap of 40 concrete initiatives for the next decade to build a competitive transport system aimed at increasing mobility, removing major barriers in key areas and fuel growth and employment. At the same time, the proposals aim to reduce Europe's dependence on imported oil and cut carbon emissions in transport by 60% by 2050.

The post-2014 elections European Commission should prioritise the following:

- Setting out a detailed growth agenda for the European Union which focuses on establishing a policy framework that enables business and entrepreneurs to develop the industries and services that will deliver long-term jobs and prosperity.
- Pursuing action to modernise the design and implementation of the budget to allow the European Union to deliver added value at a reasonable cost.
- Taking steps to modernise internal policies to meet the demands of the new century, not the last, and to respect the principle of subsidiarity.

We demand action to reinvigorate the European economy by:

- reducing the burden of EU regulation,
- bringing the single market to the next stage of development, extending it fully to the services sector,
- creating an efficient digital single market,
- establishing an efficient and effective internal market in energy, and making progress towards a **Single European Transport Area**,
- establishing the European Research Area,
- delivering open global markets,
- promoting well-functioning labour markets, and
- building a robust, dynamic and competitive financial services sector.



SPECIFIC PROPOSALS FOR THE WORK PROGRAMME

1 Delivering value for money and implementation

The ECR is aware that all expenditure is taking place in a very difficult economic context. Member States, as requested by the European Union, are making considerable efforts towards fiscal adjustments to their national budgets, with a view to ensuring the stability of public finances, the banking sector and the single currency.

The new **Multiannual Financial Framework (MFF)** entering into force into 2014 not only reflects the difficult economic and fiscal conditions in Member States but also seeks to concentrate spending on those Member States which need it most.

The Commission must introduce stronger disciplines and processes to ensure better and more efficient spending. This includes the establishment of suitable supervisory mechanisms that ensure the timely and effective uptake of funds as foreseen by its estimates. Problems relating to a shortfall in payments stem in part from a lack of uptake of funds during the first few years of the current MFF; this situation must be avoided in future.

Furthermore, the EU budget must be an investment budget- aimed towards delivering clear objectives. It must focus on areas of spending which are known to be of clear and demonstrable added value, with all instruments being spent as effectively as possible.

The Commission must do all it can to pursue the introduction of standardised national management declarations, signed at the appropriate political level, covering EU funds under shared management. It must also action systematic, regular and independent evaluations, to ensure that all spending is achieving the desired outcomes in a cost-effective manner. In keeping with this, the next Commission should include a Commissioner for Budgetary Control.

We have noted a growing concern surrounding the manner in which the Commission has implemented delegated acts since the entry into force of the Lisbon Treaty. This highlights how Parliament must be given adequate opportunities to be consulted during the drawing-up of secondary legislation, both before and after formal submission by the Commission.

Multiannual Financial Framework

The Multiannual Financial Framework (MFF) lays down the maximum annual amounts („ceilings“) which the EU may spend in different political fields („headings“) over a period of no less than 5 years.

The MFF as such is not the budget of the EU for seven years. It provides a framework for financial programming and budgetary discipline, ensuring that EU spending is predictable.

The Top 10 most burdensome legislative acts are

1. Common system of value added tax*
2. Data protection*
3. General product safety*
4. Measures to encourage improvements in the safety and health of workers at work
5. Posting of workers in the framework of the provision of services*
6. Procedures for the award of public workers contracts, public supply contracts and public service contracts*
7. Recognition of professional qualifications*
8. Recording equipment in road transport for driving and rest periods
9. Refund a value added tax to taxable persons not established in the Member State of refund but established in another Member State
10. Registration, Evaluation, authorisation and Restriction of Chemicals

*Items currently being reviewed to help SMEs

2 Smarter and less burdensome regulation

It is crucial to cut red tape; it hampers goods and services especially for small enterprises.

Therefore, the Commission must enforce the agreement between the three institutions to make good on their better lawmaking commitments. Member States should all be encouraged by the Commission to carry out their own Small and Medium Sized Businesses (SMEs) and single market tests. The Council should set up its own impact assessment unit to look at its own amendments, while the Commission should continue to place considerable importance on the use of fitness checks to review and repeal unnecessary regulation as part of the Better Regulation agenda.

When proposing new legislation, the Commission must carry out Single Market tests before proposals are presented. These need to be carried out across all policy sectors and would mean that legislation would not hamper the functioning of the single market.

Above all the Commission should place greater emphasis on meeting its targets for administrative simplification and must strengthen its commitment to assessing whether action at EU level has real added value.

The ECR believes that the burden-reduction programme must continue in 2014 with a more am-

bitious and expanded scope, alongside the introduction of regulatory burden offsetting.

The Commission must promote the interests of SMEs and microenterprises by ensuring easier access to Europe's single market. Steps have already been taken by the Commission to reduce regulatory burdens on SMEs and micro-enterprises arising from EU legislation, such as exemptions for SMEs from certain legislative provisions wherever possible and appropriate.

The Commission should continue to improve its regulatory approach to SMEs and micro-enterprises by focusing on specific legislation tailored to SMEs' needs and by pressing ahead with the introduction of targeted SME measures. These should include those measures recognised in the consultation on the **'Top 10 most burdensome legislative acts for SMEs'** for example the recent decision to lower the fees SMEs pay when registering chemicals under **REACH (Registration, Evaluation, Authorisation and Restriction of Chemicals)**. The ECR takes these complaints very seriously. We are pursuing solutions by reforming and simplifying the offending legislation. On a number of crucial proposals the ECR has been at the forefront of reforms to address the most problematic issues i.e. Public Procurement, General Product Safety, and Recognition of Professional Qualifications.



The ECR recognises a fine balance between fiscal responsibility and the need for growth. In the context of on-going debate, the two are not mutually exclusive and lowering the regulatory burdens and enhancing the growth potential of SMEs are

the most fruitful means of restoring confidence to the economy. Particularly valid, are calls for improvements to be made as regards the means via which SMEs are enabled to grow through access to the capital markets.

REACH

The Regulation on Registration, Evaluation, Authorisation and Restriction of Chemicals aims to protect both human health and the environment from the risks that can be posed by chemicals. It also seeks to promote alternative test methods, the free circulation of substances on the internal market and enhancing competitiveness and innovation. It makes the industry responsible for assessing and managing the risks posed by chemicals and providing appropriate safety information to their users

3 Single market for citizens, consumers and enterprises

The European Semester

is a yearly cycle of economic policy co-ordination set up by the European Commission. Each year the European Commission undertakes a detailed analysis of EU Member States' programmes of economic and structural reforms and provides them with recommendations for the next 12-18 months. The European semester starts when the Commission adopts its Annual Growth Survey, usually towards the end of the year, which sets out EU priorities for the coming year to boost growth and job creation.

The single market is one of the European Union's top priorities. It is the most important vehicle for growth and job creation.

Protectionism and non-enforcement of competition rules would only deepen and prolong the crisis; competition policy based on the principles of open markets and a level playing field in all sectors is an essential tool to enable the EU to have a dynamic, efficient and innovative internal market and to be competitive on the global stage. The exemption of too many services from the scrutiny of competition authorities is a concern.

The Commission's support and leadership is essential in reinforcing the role of the single market regarding the **European Semester** and in implementing Parliament's recommendations to incorporate into the European Semester a review examining the progress made towards completion of the single market, including quantitative targets.

It is essential to enforce the Services Directive and the Commission must assist Member States in promoting access to the single market for services. The Commission must review restrictive practices in place, such as the 'economic needs test'.

Pressure should be brought to bear so as to make the single market for goods work more effectively. The principle of mutual recognition is fundamental and the Commission must step up its efforts to ensure that Member States respect this principle. This is particularly important in regards to construction products. The ECR strongly supports improved cooperation between Member States on effective market surveillance to ensure a fair and open market and safe products.

We have reformed the Public Procurement framework to address the reasons why it was listed in the top 10 burdensome legislative acts. Progress was achieved to support innovation, SME inclusion, economic growth, deficit reduction and significantly cut red tape. The modernised framework which we have delivered is faster, less costly, less bureaucratic, and more effective for businesses and procurers alike. Again the Commission must assist Member States, in this instance it should be in the establishment of Single Market Centres and enhanced Points of Single Contact.

The importance of developing better indicators of single market performance, based on real experiences and expectations of businesses and consumers, will enhance functionality and their knowledge of the rights that they can exploit.

The Commission must assist Member States with key problems they have identified regarding single-market legislation. This includes improving transposition and compliance deficits and obtaining fast and efficient judicial redress.

Here, Single-market tools, including **SOLVIT**, should work better in terms of the time taken to resolve queries. In addition the importance of improved targets and key performance indicators in this regard should not be overlooked. Unsurprisingly therefore, the ECR very much welcomes the Commission's initiative to reinforce and improve the functioning of SOLVIT centres across Member States.

Given that consumer trust and confidence are the foundation of a well-functioning single market, the Commission should actively pursue, with the Member States, the speedy implementation of the Consumer Rights Directive alongside the Alternative Dispute Resolution Directive and the Online Dispute Resolution Regulation and the proposal to strengthen the effectiveness of the Unfair Commercial Practices Directive.

It is essential that an early agreement on reforms to Market Surveillance and Consumer Product Safety directives is reached. This will speed up the identification and removal of unsafe products from the market. They will also streamline compli-

ance procedures for companies manufacturing or importing consumer goods. Given their importance in creating a well-functioning single market for goods this cannot be overlooked.

Before presenting its proposals, the Commission must make full use of the Consumer Conditions Scoreboard and other forms of research which highlight the key concerns of consumers and often show significant price discrepancies that underline market inefficiencies.

Instead of a Common European Sales Law, we support a more practical model contracts approach. These would be based on existing consumer legislation, such as the Consumer Rights Directive and existing minimum harmonisation directives, which would be a much more logical, practical and effective solution for consumers and businesses.

The ECR supports **General Block Exemption Regulation for state aid** with the objective of reducing administrative burdens while being compatible with the single market.

SOLVIT

is an on-line problem solving network in which EU Member States work together to solve without legal proceedings problems caused by the misapplication of Internal Market law by public authorities. There is a SOLVIT center in every European Union Member State, these centers handle complaints from both citizens and businesses.

General Block Exemption Regulation

reduces the administration involved in granting state aid. It does this by increasing the number of categories of state aid which The Commission do not need to be notified on.



We view the role of intellectual property rights in generating innovation, growth and jobs to be fundamental. We support new proposals to encourage multi-territorial licensing in order to protect copyright and enhance consumer choice should be introduced.

Barriers affecting the competitiveness of European industry require both broad and targeted measures to account for the needs of specific sectors. We should therefore encourage sector-specific strategies within DG Enterprise, including those relating to the steel sector and

electronics, and the more general communication entitled 'A Stronger European Industry for Growth and Economic Recovery'.

The ECR group looks forward to the successful adoption and implementation of the Programme for the Competitiveness of Small and Medium Enterprises (COSME), particularly with regard to the financial instruments relating to debt and equity.

4 Digital economy

The current **EU Electronic Communications Framework** is a complex but predictable regulatory environment that has been essential to delivering effective competition, fluid investment and significant consumer benefits. Telecoms markets have enjoyed widespread growth during the recent difficult economic times but yet increasingly a more downcast view is portrayed by the European Commission. Recent proposals from the Commission to complete the digital single market have come at a time when many of the regulatory provisions to be amended by the proposals are still themselves being implemented or have otherwise not undergone a substantive review process. While we still firmly believe that they should not have been published before a substantive review, public consultation and an acceptable impact assessment have been carried out and we will work with our fellow MEPs and the Council to ensure the best outcome from the proposals in the interests of both consumers and long-term market certainty.

Here the role of efficient data protection mechanisms in ensuring confidence in the single market is incredibly important. We support the creation of an operable, technology-neutral, common-sense approach to the Data Protection Regulation. This will ensure that the EU attracts investment, enables economic growth and recovery, and provides opportunities for consumers and businesses, whilst also protecting citizens in a proportionate and accessible way.

Unduly tight regulation of internet and mobile payment markets at this stage, are concerning,

because such payment methods are still in the process of development. Any regulatory initiative in this field risks being characterised by an undue emphasis on existing payment instruments and may thus deter innovation and distort the market before it has developed.

Cyber-security is a fundamental component of securing our long-term prosperity. This is evident in the Commission's proposal for a directive on network and information security. The internal market should be a safe place to do business and the right incentives should be in place for the private sector to share information and best practices. However the legislation should not undermine the progress already achieved in Member States and disproportionate burdens should not be placed on businesses when they have few tangible benefits.

EU Electronic Communications Framework

A series of rules which apply throughout the EU Member States encouraging competition, improving the functioning of the market and securing basic user rights. The framework aims to increase choice for consumers thanks to low prices, high quality and innovative services.

The Transatlantic Trade and Investment Partnership Agreement

is a trade and investment agreement under negotiation between the EU and the US. It is designed to drive growth and create jobs.

5 Global open markets

The ECR strongly supports continuing negotiations for a **Transatlantic Trade and Investment Partnership Agreement (TTIP)** with the United States. The Commission has an obligation to assertively pursue the EU's offensive interests during the negotiations with a view to concluding the deal within an ambitious yet realistic timeframe. In addition, the ECR also welcomes the conclusion of talks with Canada, a deal which also stands to bring benefits to consumers and businesses across the EU. In this regard it is essential that the deal be ratified and implemented as soon as possible.

Furthermore, the Commission needs to dedicate sufficient resources to the promotion of open and fair trade through on-going bilateral negotiations with key strategic trading partners, such as India and the association of South East Asian Nations (ASEAN) countries. This needs to work in parallel with plurilateral and multilateral negotiations within the WTO framework in order to deliver tangible economic and social benefits through trade and investment to EU citizens and enterprises. This will include SMEs, as part of an efficient and coherent trade diplomacy on behalf of the EU as a whole.

The EU should join forces in the World Trade Organisation (WTO) with developing countries to ensure application and enforcement of multilateral trade rules and standards by all its members in full compliance with their accession commitments. This will also promote a stronger parliamentary dimension in multilateral negotiations and ensure better democratic accountability; in this regard the

need to use the existing WTO dispute settlement system appropriately is essential, it will ensure that the EU's interests are properly safeguarded.

The ECR welcomes in particular the plurilateral efforts of several WTO members, including the EU and its Member States, regarding an agreement on services and the review of the Information Technology Agreement. We maintain that plurilateral agreements should allow for any of the WTO members to participate in order to ultimately ensure a multilateral level playing field.

The Commission should actively develop the EU's investment policy with a view to negotiating robust investment protection clauses. These should include state-to-state or investor-to-state dispute settlement provisions with strategic trade partners such as China and the BRICS countries (Brazil, Russia, India, China, South Africa), to ensure business-friendly market access conditions for EU investors abroad and foreign investors in the EU.



There is a need to broaden existing trade and economic relations between the EU and the countries of the **Eastern Partnership** and the Southern Mediterranean in order to foster mutual economic development and regional stability, and thereby ensure progress towards democracy, and respect for human rights and the rule of law. The ECR welcomes, in this regard, the launch

of talks with the Kingdom of Morocco and also Jordan.

The Commission and the Member States must actively engage in the WTO, the G8, the G20 and any other relevant multilateral forums in the global fight against protectionism and unfair trade practices such as counterfeiting.

Eastern Partnership

The Eastern Partnership (EaP) is an initiative of the European Union governing their relationship with the post-Soviet states of Armenia, Azerbaijan, Belarus, Georgia, Moldova, and Ukraine. It intends to provide a venue for discussions of trade, economic strategy, travel agreements, and other issues between the EU and its eastern neighbors.

6 Employment and regional policy

Working Time Directive

Requires EU countries to guarantee the following rights for all workers:

- a limit to weekly working hours, which must not exceed 48 hours on average, including any overtime
- a minimum daily rest period of 11 consecutive hours in every 24
- a rest break during working hours if the worker is on duty for longer than 6 hours
- a minimum weekly rest period of 24 uninterrupted hours for each 7-day period, in addition to the 11 hours' daily rest
- paid annual leave of at least 4 weeks per year
- extra protection for night work.

The ECR is deeply concerned with high (and progressing) levels of unemployment in the EU. With young people facing record rates of unemployment, policies encouraging job seekers to return to the labour market alongside structural reforms which enhance competition, reduce labour costs, increase productivity performance and promote labour mobility in order to strengthen growth and boost creation of new jobs are essential.

We strongly oppose any EU legislative initiative on information and consultation of workers, and anticipation and management of restructuring, which risk burdening businesses with unreasonable requirements and introducing more rigidity into labour markets in a time of crisis without addressing the fundamental priority of any worker facing redundancy, which is to find another job. Adapting to change requires an integrated approach covering multiple policy areas.

The Commission, within the framework of fitness checks, must identify areas in which there are excessive burdens, inconsistencies and obsolete or ineffective measures. This is particularly important within the area of employment legislation which hinders opportunities for future growth and job creation.

In view of the social partners' failure to reach any agreement on the [Working Time Directive](#), in particular on the issue of on-call time and the opt-out, it is clear that the Working Time Directive is

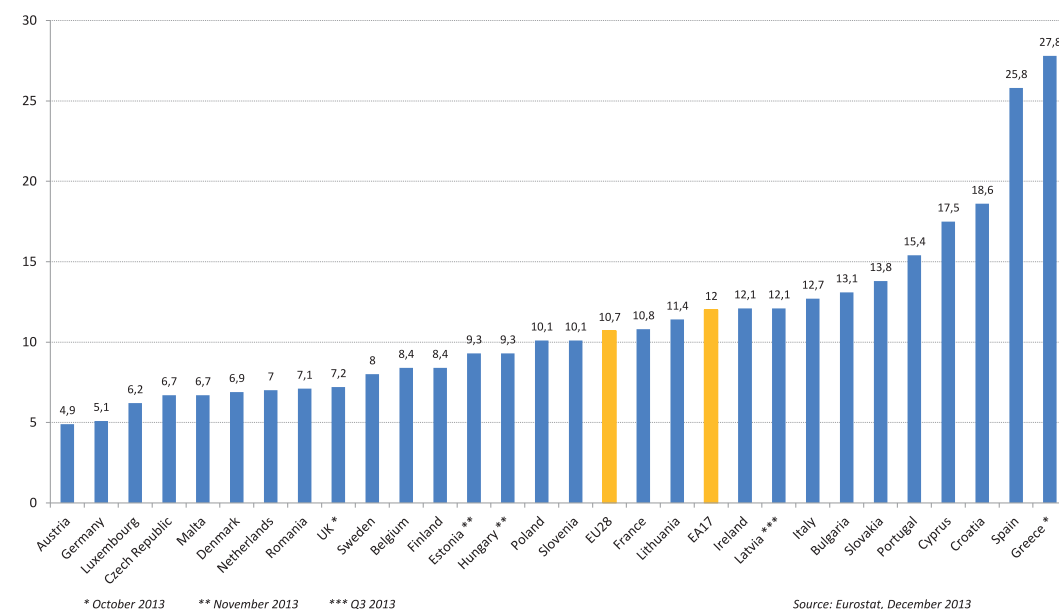
unworkable in its current form. The Commission should seek a pragmatic solution that will give businesses and workers more flexibility, and restore legal certainty and transparency.

In the context of the new 2014-2020 programming period for EU cohesion policy, the European Social Fund must be used to tackle poverty by helping disadvantaged people enter the labour market.

There is a large amount of anticipation surrounding the adoption of partnership contracts between the Commission, Member States and the relevant regional and local authorities. These partnership contracts should support the Europe 2020 Strategy's aim of smart, sustainable and inclusive growth, whilst concentrating on building economic capacity in the EU's poorest regions.

The ECR is concerned about the extent of the binding nature of these proposed contracts. We see a need to give the relevant national, regional and local authorities maximum flexibility in drawing up the partnership agreement, thereby allowing Member States to tailor cohesion policy tools to their specific goals and to regions and territories with particular needs and problems.

Unemployment rates in the EU countries – December 2013



We accept the need for a bilateral partnership agreement between the Commission and the Member States in order to provide an overarching framework, but think that any future marginal changes to the orientation of these partnership agreements should not be subject to adoption by the Commission, but rather to a less lengthy and more flexible adoption process.

Local and regional authorities, particularly elected representatives, should be fully involved in the preparation of the partnership agreements and programming, as well as in all phases of cohesion policy implementation.

Horizon 2020

is the financial instrument implementing the Innovation Union, an EU strategy for creating an innovation-friendly environment that makes it easier for great ideas to be turned into products and services that will bring our economy growth and jobs.

7 European Research Area

Horizon 2020's agreement will ensure the continuity of the EU's core research and innovation policy.

Space is a market with huge growth potential, and advantage should continually be taken not only of niche markets but also of specific opportunities that enable the sector to grow further and faster. Continued investment in research and innovation will provide a platform for the EU to take a lead on global issues such as food and energy security, as well as facilitating continued growth in the telecommunications sector.

In this context, the importance of research and innovation in accelerating the transition towards a competitive, knowledge-based economy is paramount. The Commission should seek wherever possible to maintain a greater concentration of budget resources in areas of science, research and innovation with a focus of funds on areas where the EU could hold a significant future long-term advantage. Europe must transform itself into an innovation-based economy if current sluggish growth rates are to be overcome.

We support the objectives of the European Institute of Innovation and Technology (EIT) and the importance of learning the lessons from the first three Knowledge and Innovation Communities (KICs). We are concerned over the ambitiously increased budget for the EIT under the forthcoming multiannual financial framework and believe

that a gradual roll-out will enable full evaluations to first ensure that the KICs are delivering tangible results, such as linking research and innovation bases, and stimulating business-university collaboration.

8 Financial services

The financial crisis has been on-going for over five years, yet the European Union has been the last significant economic region to emerge from it. The Commission must focus therefore, on measures that enhance the European Union's competitiveness and to refrain from policies that risk encouraging wealth-creating activity to locate in other jurisdictions.

There is a risk of regulatory arbitrage when legislating the financial services industry; therefore we should prioritise the faithful application of those measures which have been agreed at a global level over those which are being pursued at the discretion of the Commission.

Financial regulation has a serious and unintended effect on business end-users, pension funds and other elements of the real economy. This necessitates increased vigilance to ensure that financial regulation is targeted in such a way as to minimise the cost consequences on those who rely on the financial services industry to enable their businesses to run efficiently and competitively.

The need to improve the functioning of the EMU, especially in regards to enhancing democratic accountability and breaking the link between sovereigns and banks, must be recognised.

This will prevent European taxpayers paying for the consequences of future crises in the financial sector. Here the swift implementation of higher-quality supervision of all credit institutions in all EU Member States and the contribution that the **Single Supervisory Mechanism** can make towards achieving this aim should be recognised. There is a need for a robust single rulebook for all credit institutions in the EU under the authority of the European Banking Authority.



Single Supervisory Mechanism

Single Supervisory Mechanism (SSM) is the tentative term for the mechanism through which, the European Central Bank would assume ultimate responsibility for specific supervisory tasks related to the financial stability of the biggest and most important Eurozone based banks.

Some EU Member States have decided to jointly implement a financial transaction tax under enhanced cooperation. It is imperative that the implementation of any such initiative must neither undermine the tax sovereignty of the other EU Member States as regards direct taxation, nor disrupt their own tax revenue.

Progress has been made to improve market efficiency; here the importance of market access and competition to improve investor service and customer choice must be recognised. There has

been progress in the post-trade area and the timely completion of this work is of the utmost importance in order to facilitate the efficient cross-border settlement of securities.

The Commission and the Member States must actively promote the fight against tax fraud, tax evasion, aggressive tax planning and use of tax havens. They should draw on the expertise of the OECD so as to foster good tax governance in all relevant international forums.



The Commission and the Member States must simplify access to, and provide in a reader-friendly manner, the information that citizens and businesses need to properly file their tax returns. The ECR Group believes that raising awareness about respective tax obligations will help improve tax collection, thus generating needed and legitimate revenue for the budgets of all EU Member States.

The situation in Cyprus in March 2013 has highlighted the need for a framework for recovery and resolution of banks which ensures that no bank can be deemed to be too big to fail, and which, in the event of a failure of a bank, makes

sure that the institution can be dismantled in an orderly manner without producing adverse effects for the financial system as a whole.

The amount of financial services legislation passed in recent years is unprecedented, and may in places risk undermining the effectiveness of the single market. The decision of the Committee on Economic and Monetary Affairs to study the cumulative effect and coherence of financial services legislation passed in recent years, calls for a period of reflection and consolidation to enable the EU to maintain those elements which work best and to modify those which are least effective.

9 Energy

In the context of completing the single market for energy, the need to provide consumers with transparent and comparable energy prices is essential.

In light of recent proposals for energy and climate strategies for 2030 and 2050, it is regrettable that the Commission does not take a more positive stance on the significant contribution nuclear energy can make to helping us achieve our long-term low-carbon energy goals. The Commission needs to work towards improved public acceptance of nuclear energy.

The Commission should carefully consider the results of its consultation on unconventional fossil fuels when deciding if there is a need for separate legislation in this area. The current acquis is, if implemented correctly, widely considered to

ensure that health, climate and environmental safeguards are in place and that there is maximum legal clarity for both citizens and operators, whilst also ensuring that the potential economic and energy security benefits can be reaped.

The ECR is concerned that the attainment of EU energy efficiency targets will become increasingly difficult when Member States are severely restricted and subject to infringement proceedings by the Commission. It should be noted that developing and providing VAT incentives for energy savings products can contribute to ambitious EU efficiency targets.



10 Transport

There is a need to complete a free, liberalised single market for all modes of transport, including the further liberalisation of the road haulage market. This will ensure that the free movement of goods and services is guaranteed with clear and easily enforceable rules for free and fair competition and reduced administrative burdens on SMEs. We urge the Commission to draw up a report on the state of the EU road transport market and to complete all necessary analyses before coming up with legislative proposals.

Accelerating the implementation of the Single European Sky should be taken forward as one of the key priorities. The development of the new-generation **European air traffic management system (SESAR)** and the Clean Sky initiative is essential in order to ensure considerable economic and environmental

savings through greater air transport efficiency and to avoid increased congestion with ever heavier air traffic flows and outdated technologies. The delays in the creation of Functional Airspace Blocks (FABs) across Europe are concerning and political action is needed to press ahead with **FABs**. In order for the EU to remain globally competitive. Increased use of regional airports should be encouraged, along with the creation of additional airport capacity, such as runways.

There is a need to move forward with the creation of integrated pan-European online multimodal scheduling, electronic ticketing and booking and payment systems so as to promote multi-modality. The Commission must come forward with proposals that would encourage industry to develop multi-modal through-ticketing systems between the long-distance coach, rail and air sectors.



SESAR

The SESAR project (formerly known as SESAME) stands for "Single European Sky ATM Research. It is the European air traffic control infrastructure modernisation programme.

FABs

FABs stands for Functional Airspace Block. It is an airspace block based on operational requirements and established regardless of State boundaries.

11 Environment and health policy

Air Quality Framework

The Air Quality framework is the common term used for the frame work which assesses and manages air quality. It describes the basic principles as to how air quality should be assessed and managed in the Member States. It lists the pollutants for which air quality standards and objectives will be developed and specified in legislation.

The ECR Group welcomes steps already taken by the Commission towards a greater focus on the implementation of existing environmental and climate policies, instead of adding to the legislative burden and administrative costs.

In addition the Commission's intention to review and simplify air and waste legislation is also commendable. It is important to note that

any revisions of the [Air Quality Framework](#), Waste Framework and Landfill Directives should encourage swift and uniform implementation across all Member States based on workable and realistic targets and measures.

There is however concern over Commission proposals for the EU to unilaterally raise its ambition levels for carbon emissions reduction



by fixing a target greater than 20 % by 2020. The Commission must understand that the EU is only responsible for producing 11% of worldwide greenhouse gas emission and that any lasting emissions reduction strategy should reflect agreements reached at the global level through the United Nations Framework Convention on Climate Change (UNFCCC). Moreover any proposed measures should be proportionate, consider the consequences of carbon leakage and take full account of the potentially harmful impacts on energy costs and on industry.

Any future legislative activities regarding emissions from aviation should take due account of, and fully reflect, any agreements reached at international level through the International Civil Aviation Organisation (ICAO) and respect the principles of proportionality and territoriality.

Although the Commission's 2011 Action Plan on Antimicrobial Resistance is a positive step forward in terms of raising awareness and preparedness on this emerging issue, the Commission should develop measures aimed at incentivising investment in new antimicrobial treatments and reducing the use of third- and fourth-generation CIAs (Critically Important Antimicrobials for human medicine). Any such proposals must be founded on clear, evidence-based guidelines on the prudent use of antimicrobials in veterinary medicine.

In December 2013, the Commission brought forward long-proposed legislation on the use of

animal cloning techniques for food production. Ahead of this year's negotiations, it is important to consider the need for greater transparency and the consistent application of legislation related to the EU food chain, while applying the latest scientific and technological developments in this field to ensure that these measures do not place excessive costs on EU producers and consumers.

A proposed EU strategy on endocrine disruptors should focus on actions with significant European added value; further to the conclusions of the Joint Research Centre and the European Food Safety Authority. The Commission should ensure that the scientific identification of endocrine disrupting substances is based on the demonstration of both endocrine activity and an adverse effect caused by it. Any proposed legislative measures should be proportionate, evidence-based, provide better clarification and consistency of approach in risk management procedures, and encourage wider stakeholder engagement.

12 Agriculture and fisheries

Proposals agreed on the future of the common agricultural policy do not address the main challenges that European agriculture faces. They will inhibit the development of a competitive and efficient farm sector, which is vital if the European Union is to properly address the challenge of food security against a background of rising global population and increasing demand for food. The Commission has still failed to propose a framework which will allow for a fair distribution of direct payments across all EU Member States.

The Commission must ensure effective implementation of the final agreements of the CAP reform that minimise the burden on farmers and on

the administrative bodies of the Member States, whilst ensuring that the new rules are effectively, rigorously and transparently implemented.

The Commission must work closely with Member States on implementing key objectives of the reformed common fisheries policy (CFP). This is especially with regard to supporting small-scale fisheries, strengthening the regional aspect of the CFP, implementing the discard ban, meeting maximum sustainable yield targets and collecting all data necessary for better management of European fisheries resources.



13 An Area of Freedom, Security, and Justice

The Commission's work on victims' rights is commendable and the Commission needs to assist Member States in ensuring full and proper implementation by all Member States of the directive establishing minimum standards on the rights, support and protection of victims of crime by 16 November 2015.

The same is true with the Commission's work on children's rights and welfare. Here the Commission must continue working in collaboration with Member States to improve children's quality of life and safety within the European Union, particularly their online safety.

A great amount of work has been done to date by Myria Vassiliadou, the EU anti-trafficking coordinator; however the ECR is concerned that the role is not proving to be effective in that the numbers of people who are trafficked throughout the European Union are increasing rather than decreasing. The Commission must make optimum use of the EU Strategy towards the Eradication of Trafficking in Human Beings 2012-2016 in tackling the problem of human trafficking; it should intensify its action to combat the trafficking of human beings.



We recognise that whilst intergovernmental co-operation and the principle of mutual recognition in the area of justice can be beneficial, we believe that in order to create an effective European Area of Freedom, Security, and Justice, the European Union must devise a system which is nuanced and considerate of each Member State's individual legal and political personality. The tools therefore must only be created where needed. This must not lead to excessive interference in areas such as judicial training, criminal penalty setting, legal aid provision and compensation for victims of crime. The Commission must re-examine the balance between intergovernmental cooperation and state sovereignty in this area.

The European Union can play a strong and vital role in the fight against terrorism and organised crime and the Commission must continue working on and pursuing solutions which are essential to the security of European citizens and to the investigation and prosecution of cross-border crime. Moreover, in so doing, the Commission must ensure that the rights, data and freedoms of EU citizens are fully respected.

All justice and Home Affairs (JHA) agencies must be cost-effective, efficient and accountable to the European Parliament, the Commission and national governments. In addition they must create added value for creating a safe and secure Europe.

In order to fight crime and corruption and to control the EU's external borders, the rule of law and

fundamental rights must be upheld, ensuring the right balance between security and mobility.

In creating a Europe which is safe and secure, we must ensure that the data and rights of citizens are protected, but also that the right to privacy is balanced with the right to security. Tackling organised crime, money laundering, fraud and corruption against the EU's financial interests at cross-border level is of paramount importance. The EU should focus on the facilitation of cross-border cooperation and information-sharing in order to tackle this issue; in order to achieve this; mutual trust needs to be present in the judicial and policing systems of all Member States.

Efforts have been made by the Commission to improve Schengen governance; however the issue of border control is closely linked to maintaining law and order and national security, matters which remain the sole responsibility of each Member State. Therefore, the ultimate decision on whether or not border controls take place at internal EU borders remains with the Member States and the Commission must take this principle into account when preparing draft legislation on Schengen governance.

The ECR sees a need for effective coordination at Union level of EU visa matters. Moreover, the Commission must discuss and negotiate matters relating to visa policy, in particular requests for reciprocity, in an open and transparent manner, while refraining from threatening to restore visa requirements.



14 Equality

We are strongly supportive towards the principle of gender equality and the importance of promoting equal rights for men and women and female and male children.

Here the European Union must lead by example, and should not continue to impose difficult and complex targets on Member States when its own institutions cannot reach those targets. The Commission, the European Central Bank, Parliament and the European agencies have a huge shortfall of women in senior positions. This problem must be dealt with before the Commission imposes targets on Member States. In keeping with this, it is deeply concerning that the Commission did not heed the concerns of Member States regarding the proposed directive on targets and quotas for women as non-executive directors on company boards.

A further cause for concern lies in the fact that incidences of domestic violence are increasing in Europe year on year. The Commission must therefore continue its work in tackling this problem through the adoption of its planned non-legislative strategy.

In addition, the harmful practice of female genital mutilation is increasing in Europe; again the Commission must assist Member States in eradicating this abuse of girls and young women.

The Commission should take note of the on-going concerns of Member States with regard to

the directive on the health and safety at work of pregnant workers. This proposed directive does not have the support or approval of the Council and should be rejected.

The ECR believes that the Commission should suspend all proposals for a directive on equal pay for men and women and instead work with Member States to investigate effective, non-legislative ways of tackling unequal pay. These means should then be addressed at Member State level.

Finally we hope that the Commission will be supportive of a proposal to rename Parliament's Committee on Women's Rights and Gender Equality the 'Equalities Committee', therefore focusing on a broader spectrum of disadvantaged or minority groups.

15 Culture

It is our belief that the Commission should support the development of cooperation with European Neighbourhood Policy countries in the field of education and culture on the basis of the 'less for less, more for more' rule. Furthermore they should strive to maintain a balance between the southern and eastern dimension of the European Neighbourhood Policy in all activities in the field of education and culture.

The Commission needs to increase activities aimed at the development of the Eastern Partnership, especially in the field of mobility and educational cooperation.

The Commission should also investigate the underlying problems of incomplete recognition of

courses passed and accumulated **ECTS** points at home universities for students who complete study periods at other universities under the Erasmus programme.

It must be ensured that any legislation proposed in the field of culture complies properly with the principle of subsidiarity; commission action in this field should be limited to areas that can truly add value.

With regards to sport, the Commission should focus in particular on adding value to the development of community-led grassroots sport.



European Credit Transfer and Accumulation System (ECTS)

is a standard for comparing the study attainment and performance of students of higher education across the European Union and other collaborating European countries.

16 Foreign Affairs and Development

More than half of the global official aid to developing and emerging countries comes from the EU and its Member States. This makes it the world's biggest aid donor.

EU development policy should be based on promoting economic growth, wealth creation and free trade exchanges in global markets.

In keeping with this, the Commission should establish a holistic approach to development policy and humanitarian aid, with the objectives in the long run measured in terms of political stabilisation, peace and tangible economic results.

The outcome of the Fourth High-Level Forum on Aid Effectiveness in Busan, South Korea held in November and December 2011 produced some commendable results. This is especially true in its focus on results, transparency and fragility.

A shift is needed, away from a prevailing input-orientated development policy and towards a results-orientated development policy, with precise annual figures on development achievements showing how much EU taxpayers' money has been spent. This will ensure that the EU's development efforts have a lasting impact on eradicating poverty.

The most efficient development strategy is to guarantee access to global markets for emerging and developing countries; therefore it is necessary to further lower trade barriers and trade-distorting subsidies in order to help developing countries

increase their share of global trade.

It is important to pursue greater cooperation with new aid donors such as China, Brazil and India, which are increasingly influential providers of support and assistance to poorer countries and are key players in a new global development partnership.

The Commission must pragmatically address the issue of property rights in developing countries and to devise a coherent approach in conjunction with the other international development partners in order to kick-start a process of empowering local communities and individuals in developing countries. This is a process that constitutes one of the cornerstones of development, a process that could lift entire nations out of poverty and intensify economic activities in developing countries.

In order to increase aid efficiency it is also crucial to guarantee greater policy coherence, whereby all EU policy areas, especially those with a significant impact in developing countries, contribute to wealth creation in developing countries. It is also necessary to increase coordination among the Member States.

The EU is at a crossroads



**Time to take
a new direction**



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